

PETITION - ASK THE COURT TO DESTROY RECORDS OF AN OFFENSE THAT IS NO LONGER A CRIME

IN THE COURT

(Superior Court, or the Judicial Department records center for older courts - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

PETITION FOR PHYSICAL DESTRUCTION OF RECORDS OF A DECRIMINALIZED OFFENSE,
C.G.S. Sec. 54-142D

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under C.G.S. Sec. 54-142d; State v. Menditto, 315 Conn. (2015); State v. Dudley and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Where a person was convicted of an offense that has since been decriminalized, the person may petition the Superior Court and the court shall direct the records to be physically destroyed. The remedy is destruction rather than erasure, and the trigger is decriminalization generally rather than the specific cannabis categories. No official form was located, so the filing vehicle is a custom pleading.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - conviction details] Which court, docket number and date of conviction?

.....

.....

[C2 - offense sections] Which statute section were you convicted under?

.....

.....

[C3 - decriminalization basis] On what basis do you say this offense has since been decriminalized?

(The participant's own position. LegalEase does not assert that an offense has been decriminalized; that

question carries case law.)

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[C4 - counts on docket] How many counts are on this docket?

.....

.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under C.G.S. Sec. 54-142d; State v. Menditto, 315 Conn. (2015); State v. Dudley.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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Route: obligation:track-only:CT:ct-decriminalized

FILING INSTRUCTIONS - ASK THE COURT TO DESTROY RECORDS OF AN OFFENSE THAT IS NO LONGER A CRIME

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Petition for Physical Destruction of Records of a Decriminalized Offense, C.G.S. Sec. 54-142d.

Where a person was convicted of an offense that has since been decriminalized, the person may petition the Superior Court and the court shall direct the records to be physically destroyed. The remedy is destruction rather than erasure, and the trigger is decriminalization generally rather than the specific cannabis categories. No official form was located, so the filing vehicle is a custom pleading.

WHERE IT GOES

Superior Court, or the Judicial Department records center for older courts

The court shall direct the records to be physically destroyed. This is a stronger outcome than erasure.

Venue: The Superior Court at the location where the conviction was effected, at the location having custody of the records, or with the Judicial Department records center for older courts.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

No committed record this packet binds states a filing fee for this route - the record says: "Unresolved. Sec. 54-142a(k) bars a fee on petitions under that section; Sec. 54-142d is a different section and whether the bar reaches it has not been established.". The office that answers it is the clerk's office of Superior Court, or the Judicial Department records center for older courts (the venue the registry records for this route: The Superior Court at the location where the conviction was effected, at the location having custody of the records, or with the Judicial Department records center for older courts.). No committed record states a fee-waiver procedure for this route - the record says: "Unresolved along with the fee question.". Ask the clerk's office of Superior Court, or the Judicial Department records center for older courts (the venue the registry records for this route: The Superior Court at the location where the conviction was effected, at the location having custody of the records, or with the Judicial Department records center for older courts.) for its own fee-waiver application.

WHO MUST BE SERVED

No committed record this packet binds states a service requirement for this route - the record says: "The source review does not state a service requirement.". The office that answers who must be served, and how, is the clerk's office of Superior Court, or the Judicial Department records center for older courts (the venue the registry records for this route: The Superior Court at the location where the conviction was effected, at the location having custody of the records, or with the Judicial Department records center for older courts.). Notice: the record says "The source review does not state a notice requirement.", so the clerk's office of Superior Court, or the Judicial Department records center for older courts (the venue the registry records for this route: The Superior Court at the location where the conviction was effected, at the

location having custody of the records, or with the Judicial Department records center for older courts.) is the office that answers it.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Whether the offense has been decriminalized within the meaning of Sec. 54-142d is contested or unclear.
- The matter involves a violation of probation finding premised on a later-decriminalized offense, which State v. Dudley addressed.
- The court sets a hearing.
- The participant has an immigration matter.
- A procedural hearing does not block generation. Disputed facts or a contested hearing trigger handoff.

THE PAGES IN THIS SET

- ct-decriminalized-primary-filing-1: the composed petition, on this route's own statutory ground (Ask the court to destroy records of an offense that is no longer a crime)

Route: obligation:track-only:CT:ct-decriminalized